

Situs Correction Request to TN DOR — Letter Template

Civvix Inc.

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Tennessee publishes no form and no sample letter. This template is synthesized from the only documented Tennessee procedure (MTAS-544: mark corrections on the situs report and send it to Financial Control with account numbers) and from the states that do publish a form — California's CDTFA-549 petition and Regulation 35056 (the seven required elements and the "sufficient factual data" standard), Alabama's Local Account Number Correction form (incorrect code / correct code / effective date, signed by an authorized official), and Illinois' referral statute (account ID, location, and "the specific reason ... including as much detail as possible"). It is written to satisfy the strictest of those so that a Tennessee reviewer has nothing to send back.

[COUNTY / CITY LETTERHEAD]

[Date]

Tennessee Department of Revenue
Financial Control Division
500 Deaderick Street
Nashville, Tennessee 37242
revenue.financialcontrol@tn.gov

Re: Request for correction of local option sales tax situs allocation — [Jurisdiction], situs code [XXXX] — [N] taxpayer accounts — Notification date [Date]

Dear Financial Control Division:

1. Standing and authority. [Jurisdiction] submits this request as a unit of local government under Tenn. Code Ann. § 67-1-1704(d), which authorizes the Department to disclose situs information to duly authorized local officials for the purpose of ascertaining whether allocations of state and local taxes are being distributed to the correct unit of local government. Local option sales tax is distributable under § 67-6-712(a)(2) to the jurisdiction in which the privilege is exercised. The undersigned is the [Finance Director / County Mayor], a duly authorized official. [If applicable: The analysis attached was prepared by [Jurisdiction]'s contractor, [name], under § 67-1-1704(e); a copy of the authorizing [resolution / contract] is attached.]

2. Situs report reviewed. [Jurisdiction] reviewed the situs report for situs code [XXXX] downloaded from the Revenue External Portal on [date], covering ZIP codes [list]. A marked-up copy of that report identifying each account addressed here is attached as Exhibit A.

3. Accounts requested for correction. For each account listed in the table below and detailed in the attached evidence packets (Exhibit B), the business location is physically situated in a jurisdiction other than the one to which the account is currently coded.

#	Business name / DBA	Sales tax account no.	Location address	Current situs	Correct situs	Packet
1						B-1
2						B-2

4. Basis and evidence. For every account, the evidence packet shows: the location's position within the Department's own published Sales Tax Rate Boundary polygon; the jurisdiction assigned to the address by the Department's Streamlined Sales Tax address-range file; the municipality recorded for the address by the 911 addressing authority; the Comptroller of the Treasury's certified municipal boundary; the measured distance in feet from the location to the nearest boundary between two situs codes, in Tennessee State Plane coordinates; the effective date and custodian of every source; and the name and date of the reviewer. Where the location lies within 250 feet of a boundary, the packet additionally records parcel and structure evidence. [Jurisdiction] will furnish proof of its corporate boundaries, including annexation ordinances and their recording data, on request.

5. Period. [Jurisdiction] requests that each account be corrected prospectively and that prior distributions be adjusted for the twelve months preceding the date of this notification, [date] through [date], or such longer period as the Department's practice permits. Please confirm the notification date the Department has recorded for this request.

6. Requested action. [Jurisdiction] requests that the Department: (a) update the situs code on each account listed; (b) adjust distributions for the period stated and advise the schedule on which the adjustment will be made; (c) acknowledge receipt of this request in writing; and (d) notify [Jurisdiction] of any account on which the taxpayer or another jurisdiction disputes the correction, together with the deadline for [Jurisdiction]'s response.

7. Accounts not appearing on the situs report. Exhibit C lists [N] businesses operating at locations within [Jurisdiction] that do not appear on the situs report, with sales tax account numbers where known. [Jurisdiction] requests that the Department verify the situs coding of each.

8. Both directions. [Optional, recommended:] Exhibit D lists [N] accounts currently coded to [Jurisdiction] whose location the same evidence places in another jurisdiction. [Jurisdiction] reports these in the interest of accurate allocation. / [Jurisdiction] has provided these to [neighboring jurisdiction] under its inter-local agreement.

Please direct acknowledgment and all correspondence to:

[Name], [Title]

[Address] · [Phone] · [Email]

Respectfully,

[Name], [Title]

[Jurisdiction]

Attachments: Exhibit A — marked-up situs report · Exhibit B — evidence packets B-1 ... B-[N] · Exhibit C — businesses not on the situs report · Exhibit D — accounts coded to [Jurisdiction] located elsewhere · [Authorizing resolution / contractor designation]

Notes on use

- **The notification date is the money.** The Department corrects one year back from notification (MTAS; practice, not statute). State the date in the subject line and in ¶5, send by a method that records receipt, and ask the Department to confirm the date it has logged. California protects the “date of knowledge” for a petition that is later supplemented within 30 days; Tennessee has no such rule, so file complete.
- **One account per packet; one letter per batch.** A reviewer should be able to verify any single account without reading the others.
- **Account numbers come from the situs report** and appear only in the letter and packets that the county sends. They never appear in anything the contractor retains.
- **Sign as the local government.** The contractor prepares; the authorized official signs and sends. This matches Knox County’s 2020 structure and keeps the § 67-1-1704(e) non-disclosure question from ever arising.
- **Expect the “verification” step.** Per Knox County’s RFP, the Department asks the other party to concur, not reply (treated as concurrence), or dispute. Build the calendar for it.